

ROBERT K. HANNA, State Bar No.: 341970
JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
MICHAEL D. KAHN, State Bar No.: 236898
LAMONT FREEMAN, State Bar No.: 349862
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
E-mail: CaliforniaLegal@mcmcg.com
CA Debt Collector License Number Pending
Attorneys for Plaintiff

Electronically FILED by
Superior Court of California,
County of Los Angeles
3/18/2024 12:00 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By Z. Pedraza, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

JESSICA PENA;

Defendant.

Case No. 24CHLC00783

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant JESSICA PENA
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor CITIBANK, N.A., account number: XXXXXXXXXXXXX-4834 (the
6 "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 21, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

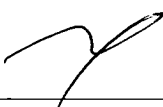
12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date March 05, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: 

- ☐ ROBERT K. HANNA
- ☒ JUNQIAO XIAO
- ☐ HYO JIN JULIA JUNG
- ☐ MICHAEL D. KAHN
- ☐ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
LEGAL COLLECTIONS DEPARTMENT

MidlandCredit.com
(877)-898-5001

Jessica Pena
P1 T11 12983 Sunburst St
001 Pacoima, CA 91331-3344



Our Client: Midland Credit Management, Inc.
Original Creditor: CITIBANK, N.A.
Original Account No.: XXXXXXXXXXXX4834
Current Balance: \$2,961.16
Internal Legal Account No.: 23-210701

Michael Kahn, State Bar No. 236898
Hyo Jin Julia Jung, State Bar No. 316090

12/01/2023

REF: CITIBANK, N.A.
Original Account Number: XXXXXXXXXXXX4834

Dear Jessica Pena,

As attorneys with Midland Credit Management, Inc. legal department, we are contacting you regarding the collection of the above balance. Your CITIBANK, N.A. Account, owned by Midland Credit Management, Inc., has now been transferred to our legal collections department due to non-payment. We are currently reviewing documentation (including the attached documents) in preparation for filing a lawsuit against you.

Demand is hereby made upon you for the above payment IN FULL—this is the amount due on your original obligation when transferred to our department. Please send payment **Made Payable to Midland Credit Management, Inc.** by 12/11/2023. You may also make a payment online at MidlandCredit.com.

If we do not receive payment IN FULL by 12/11/2023, we intend to file a lawsuit against you, seeking entry of judgment for your account's outstanding balance as well as any incurred and recoverable court costs. We intend to continue our collection efforts through various post-judgment remedies available under your state's laws if a judgment is obtained against you. If you are unable to pay in full by 12/11/2023 please contact our office at (877)-898-5001 to discuss affordable repayment options.

Your prompt attention is necessary to avoid a lawsuit. Please call (877)-898-5001 no later than 12/11/2023. You may also make a payment online at MidlandCredit.com.

Sincerely,
Attorneys for Midland Credit Management, Inc.

P.S. Attached are copies of some of the documents we received from the original creditor regarding this account.

001129

Visit Us Online
MidlandCredit.com
Call (877)-898-5001
Hours of Operation:
M – Fri: 8:00am – 7:30pm EST
Sat: Closed
Sun: Closed

P.O. Box 2121 Warren, MI 48090

PLEASE SEE REVERSE SIDE FOR IMPORTANT DISCLOSURE INFORMATION

Please tear off and return lower portion with payment in the envelope provided

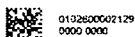
PAYMENT CERTIFICATE

Internal Legal Account Number: 23-210701
Original Account Number: XXXXXXXXXXXX4834
Current Balance: \$2,961.16
Amount Enclosed: \$ _____

Jessica Pena
12983 Sunburst St
Pacoima, CA 91331-3344

Payment Options:
1) Pay by phone: (877)-898-5001
2) Mail in this certificate with your payment and make check payable to: Midland Credit Management, Inc.

P.O. Box 2121 Warren, MI 48090



PRE_002

IMPORTANT DISCLOSURE INFORMATION:

Please understand this is a communication from a debt collector. This is an attempt to collect a debt.
Any information obtained will be used for that purpose.

Calls to and/or from this company may be monitored or recorded.

MAIL PAYMENTS TO: P.O. Box 2121 Warren, MI 48090

MAIL CORRESPONDENCE TO: P.O. Box 2121, Warren, MI 48090

We are required under state law to notify consumers of the following additional rights. This list does not contain a complete list of the rights consumers have under applicable law:

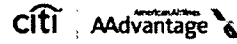
IF YOU LIVE IN CALIFORNIA, THIS APPLIES TO YOU:

California Code of Civil Procedure §1033(b)(2) requires us to notify you that in the event of legal proceedings, such legal proceedings could result in a judgment against you that could include court costs and necessary disbursements under applicable law, if Midland Credit Management, Inc. is found to be legally entitled to the same.

California license number pending.

PRE_002

CITI® / AADVANTAGE® GOLD CARD



JESSICA PENA

Member Since 2017 Account number ending in: 4834
Billing Period: 12/10/21-01/11/22

www.citibank.com
Customer Service 1-800-846-8444
Speech/hearing impaired: 711
30X 5500 SIOUX FALLS, SD 57117

JANUARY STATEMENT

Minimum payment due: **\$3,961.16**
New balance as of 01/11/22: **\$3,961.16**
Payment due date: **01/11/22**
See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 25.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,961

For information about credit counseling services, call 1-877-337-8198.

Account Summary

Previous balance	\$3,883.21
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$77.95
New balance	\$3,961.16

Credit Limit

Revolving Credit limit **\$3,400**
Includes \$800 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 95062-8045

Pay online www.citibank.com

Pay by phone 1-800-846-8444

Pay by mail Use this coupon
• Enclose a valid check or money order payable to CITI CARDS. No cash or foreign currency.
• Write the last four digits of your account number on your check.

Minimum payment due **\$3,961.16**
New balance **\$3,961.16**
Payment due date **01/11/22**

Amount enclosed:

Account number ending in 4834
Please make check payable to CITI CARDS.

000000 WE 34 A 0

JESSICA PENA
12993 SUNBURST ST
PACOMA CA 91331

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

15009 0396116 0396116 0010000 0 4834 0705



020600002129
0000 0000

JESSICA PENA

Account Summary

Trans. date	Post date	Description	Amount
----------------	--------------	-------------	--------

Fees charged

Total fees charged in this billing period	\$0.00
---	--------

Interest charged

Date	Description	Amount
01/11	INTEREST CHARGED TO STANDARD PURCH	\$2.45
01/11	INTEREST CHARGED TO PUR PR-06/30/21	\$72.91
01/11	INTEREST CHARGED TO PUR PR-09/30/21	\$2.59
Total interest charged in this billing period	\$77.95	

2022 totals year-to-date

Total fees charged in 2022	\$0.00
Total interest charged in 2022	\$77.95

Interest charge calculation

Days in billing cycle: 33

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	21.99% (V)	\$123.36 (D)	\$2.45
Pur Pr: 063021	21.99% (V)	\$3,667.13 (D)	\$72.91
Pur Pr: 093021	21.99% (V)	\$130.39 (D)	\$2.59
ADVANCES			
Standard Adv	25.24% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Minimum Payment Due includes past due amounts. Your account may be with a collection vendor and when you call our number, you may be referred to the vendor. You may reach us at the toll-free number shown above Monday-Thursday 8am to 6 pm or Friday 8am to 5pm, Central Time. 1-800-846-8444. TTY 1-855-371-0353.

©2021 Citibank, N.A.

Citi, Citi and Arc Design and other marks used herein are service marks of Citigroup Inc. or its affiliates, used and registered throughout the world. American Airlines, American Eagle, AAdvantage, AAdvantage Million Miler, MileSAver, Business Extra, Flagship, Admirals Club, Platinum Pro, AAdvantage MileUp, AA Cargo, the Flight Symbol logo and the Tail Design are marks of American Airlines, Inc.